

25VECV02593 25VECV02593

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C09%2F16%2F2026

Source SHA-256: 6ebc4ecc2b3884d12ae97a9bf3d4c76a2e88241a01f9d51e787d5cc19208e0c6

Case Number: 25VECV02593 Hearing Date: September 16, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 16, 2026

CASE NUMBER: 25VECV02593

CASE NAME: Farmers

Insurance Exchange v. Karen Shainsky, et al.

MOVING PARTY: Defendant

and Cross-Complainant Karen Shainsky

MOTION: Defendant

and Cross-Complainant's Motion to Compel Responses to Requests for Production,
Set One

OPPOSITION: None

REPLY: None

RULING SUMMARY: Shainsky's motion is granted; Farmers shall produce the responsive documents that its Response stated would be produced, within 10 days of this Ruling. Shainsky's request for sanctions is granted in the amount of \$660.00. Shainsky is to give notice.

Background

On January 3,

2025, Karen Shainsky (Shainsky) filed a petition to confirm appraisal award against Farmers Insurance Exchange (Farmers) under lead case number 25STCP00038 and on March 18, 2025, the Court confirmed the award acknowledging that the award did not address coverage issues and that any issues could be resolved in a subsequent lawsuit.

On May 9, 2025, Farmers filed a Complaint under case number 25VECV02593 against Shainsky for declaratory relief seeking a judicial declaration of rights, duties and obligations under the Policy (Declaratory Relief Action). Shainsky filed a Cross-Complaint for breach of contract, breach of the implied covenant of good faith and fair dealing, and unfair business practices (Breach Action) against Farmers.

On January 28, 2026, the cases were consolidated.

On June 1, 2026, Shainsky filed a motion to compel Farmers to comply with its own written verified responses to her Requests for Production, in which it stated that it would produce responsive documents, pursuant to Code of Civil Procedure section 2031.320.

No opposition has been filed.

Discussion

"If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance." (Code Civ. Proc., § 2031.320, subd. (a).)

Shainsky asserts she propounded her Request for Production of Documents, Set No. One, on Farmers, and Farmers served its written responses on April 21, 2026. (Mot., p. 3.) Shainsky contends Farmers explicitly agreed to produce documents responsive to Request Nos. 1-7, but has failed to tender the documents. (Mot., p. 3.) Shainsky

argues the Court must compel compliance under Code of Civil Procedure section 2031.320. (Mot., pp. 4-5.)

Having committed itself to production, Farmers is obligated to tender the documents in accordance with its statement of compliance. Shainsky asserts Farmers has produced no documents, and Farmers has not filed an opposition. Nothing before the Court excuses the failure to produce documents.

Accordingly, Shainsky's motion is granted.

Monetary Sanctions

The Court "shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.320, subd. (b).)

Shainsky seeks monetary sanctions in the amount of \$1,260.00, consisting of 1.5 hours drafting the motion, an anticipated 1.5 hours reviewing the opposition and drafting a reply brief, and preparing for and attending the hearing, at an hourly rate of \$400, plus the \$60 filing fee.

The Court finds the amount requested unreasonable, as the motion is straightforward and unopposed. The Court thus awards monetary sanctions to Shainsky against Farmers and its counsel in the reduced amount of \$660.00, consisting of 1 hour drafting the motion and 0.5 hours attending the hearing at an hourly rate of \$400, plus the \$60 filing fee.

Conclusion

Shainsky's motion is granted; Farmers shall produce the responsive documents that its Response stated would be produced, within 10 days of this Ruling. Shainsky's request for sanctions is granted in the amount of \$660.00. Shainsky is to give notice.

Dated:

William

E. Weinberger

JUDGE

OF THE SUPERIOR COURT